

**Court No. - 39**

**Case :-** WRIT - C No. - 39860 of 2014

**Petitioner :-** Manoj Tomar

**Respondent :-** State Of U.P. & 3 Others

**Counsel for Petitioner :-** Sanjeev Kumar Pandey

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Krishna Murari,J.**

**Hon'ble Ashwani Kumar Mishra,J.**

Heard Sri Sanjeev Kumar Pandey, learned counsel for the petitioner, learned Standing Counsel for the respondent nos.1, 2 & 3 and Sri Baleshwar Chaturvedi, who has accepted notice on behalf of the respondent no.4.

Petitioner has approached this Court challenging the citation dated 12.06.2014 issued by respondent no.4 for recovery of a sum of Rs. 1,59,005/- from him towards consumption of electrical energy.

Learned counsel for the petitioner contends that petitioner is ready and willing to deposit the entire amount in instalments.

Sri Baleshwar Chaturvedi, learned counsel appearing for the respondent-Corporation points out that under Clause 6.14 of the U.P. Electricity Supply Code, 2005, Executive Engineer, D.G.M. and General Manager are empowered with the authorities to extend the facility of instalments to the consumer, who are in financial distress. The petitioner may approach the relevant authorities alongwith representation in this regard.

However, the petitioner is at liberty to make representation before the authority concerned in accordance with the provision of Clause 6.14 of the U.P. Electricity Supply Code, 2005 within a period of three weeks from today and in case, any such representation is made, the authority concerned shall proceed to decide the same in accordance with law, expeditiously preferably within a further period of one month from the date of making of the representation.

Subject to above, writ petition is dismissed.

**Order Date :-** 4.8.2014

Anil